

25LBCV01105 25LBCV01105

County: los-angeles

Division: Civil Law and Motion

Department: S28

Hearing date: 2026-08-18

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LB%20%2CS28%2C08%2F18%2F2026

Source SHA-256: d835f6c3a42f81d2be889ef8fe8d4fd25e08d67806f8e2dda4d263f677dad7f4

Case Number: 25LBCV01105 Hearing Date: August 18, 2026 Dept: S28

BACKGROUND

On

April 4, 2025, Plaintiff filed this lemon law matter against Defendant GM and the dealership.

On

December 30, 2025, Plaintiff filed a notice of settlement of the entire case.

On

May 11, 2026, Plaintiff filed the instant motion for attorney's fees and a memorandum of costs.

On

July 8, 2026, Defendant filed opposition.

On

July 14, 2026, Plaintiff filed a reply.

DISCUSSION

Applicable

Law

A prevailing party is entitled to reasonable attorney fees in addition to other costs.

(Code Civ Proc. § 1033.5(a)(10).) "Prevailing party" includes the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a

defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. (Code Civ Proc. § 1032(a)(4).) In all other circumstances, the “prevailing party” shall be as determined by the court. (Ibid.)

The fee setting inquiry ordinarily begins with the “lodestar,” i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (PLCM Group, Inc. v. Drexler (2000) 22 Cal. 4th 1084, 1095.) “The lodestar figure may then be adjusted, based on consideration of facts specific to the case, in order to fix the fee at the fair market value for the legal services provided.” (Gorman v. Tassajara Dev. Corp. (2008) 162 Cal.App.4th 770, 774.)

In determining whether to adjust the lodestar figure, the court may consider the nature and difficulty of the litigation, the amount of money involved, the skill required and employed to handle the case, the attention given, the success or failure, and other circumstances in the case. (EnPalm LLC v. Teitler (2008) 162 Cal.App.4th 770, 774.)

The prevailing party bears the burden of proof and the amount is left to the trial court’s sound discretion. (Christian Research Institute v. Alnor (2008) 165 Cal. App. 4th 1315, 1320.) A fee request that appears unreasonably inflated is a special circumstance permitting the trial court to reduce the award or deny one altogether. (Serrano v. Unruh (1982) 32 Cal.3d 621, 635.)

Analysis

A. Entitlement to Attorney’s Fees

The parties have settled this matter via an offer made by Defendant pursuant to Code Civ. Proc. § 998 (“998 offer”). This case settled for a repurchase of Plaintiff’s vehicle for \$81,421, which totaled the repurchase plus a civil penalty for the failure to promptly repurchase, with attorney fees and costs to be determined by the Court. (Mot., p. 3.)

Plaintiff now seeks a total award of

\$15,588.47, comprised of the following: (1) \$14,372.00 in incurred attorney's fees; (2) \$1,216.47 in costs and expenses; and (3) prejudgment interest on the fees and costs awarded pursuant to the 998 Offer accepted in this matter. (Mot., pp. 2, 5.)

As the prevailing party, it is undisputed that Plaintiff is entitled to reasonable fees and costs. (Civ. Code § 1794(d)).

B. Reasonableness

"Even after determining that a party is entitled to fees because it 'prevailed,' the trial court must still determine what amount of fees would be 'reasonable' in light of the relative extent or degree of the party's success in obtaining the results sought." (Sokolow v. County of San Mateo (1989) 213 Cal.App.3d 231, 247.) As to Song-Beverly warranty claims, prevailing buyers have the burden to show that the fees incurred were reasonably necessary to the conduct of the litigation and were reasonable in amounts. (Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 967, 998 (Doppes).)

Records amounting to vague block billing are not objectionable per se, but are a risky choice, because moving parties have the burden to support fees requests, and the strategy may lead to trial courts' discretionary curtailing of the number of compensable hours. (Christian Research Inst. v. Alnor (2008) 165 Cal.App.4th 1315, 1325.) "In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (Lunada Biomedical v. Nunez (2014) 230 Cal.App.4th 459, 488. Accord, Etcheson v. FCA US LLC (2018) 30 Cal.App.5th 831, 848.)

"The Song-Beverly Act's attorney fee provision ""requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended, and the monetary charge being made for the time expended are reasonable." (Tidrick v. FCA US LLC (2025)

112 Cal.App.5th 1147, 1158.) Under the Song-Beverly Act, the question whether attorneys' fees were reasonably incurred may depend on circumstances including, "factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved." (Goglin v. BMW of North America, LLC (2016) 4 Cal.App.5th 462, 470. The appellate court reviews awards of attorney fees under Civil Code section 1794, subdivision (d), for abuse of discretion. (Doppes, supra, 174 Cal.App.4th at p. 998.)

Defendant argues that the Court should award no more than \$6,968.13 in fees and costs, disputing the following entries:

1.

Client Intake and Pre-Litigation

Tasks—February 18, 20, 21, & 24, 2025

Counsel billed a combined total of 2.7 hours (\$515.00) on initial intake and pre-litigation tasks such "intake call", "obtained initial information on the vehicle", "processed documents", "created Client folder" and "Created Repair Order Summary and Attorney Folder". (Declaration of M. Nicholas Nita ("Nita Decl."), Ex. A, p.1.) Defendant argues that any "work" performed in order to assess potential claims and "sign" Plaintiff as a client, including "[p]repar[ing] Lemon Law Representation Agreement", is a cost of doing business and not properly charged to one's client and therefore not properly shifted to GM.

Here, these fees were reasonably incurred as the initial setup of a new case file serves a legitimate litigation function. Further, these tasks are administrative in character and were completed by clerical and administrative staff at a reduced rate. The Court thus declines to deduct this entry and finds it reasonable.

2.

Preparing Complaint—April 3 & 4, 2025

Defendant

contends that Plaintiff's 1.7

hours (\$500.00) to prepare and revise the templated Complaint and supporting

documents should be reduced by

1.2 hours (\$375.00) because the Complaint filed in this case is substantially similar to complaints used by Counsel in numerous other cases against GM. (Kay Decl. ¶ 3; compare Ex. A with Ex. B (Complaint filed in this case and complaint filed by Counsel in another case).) Defendant argues that it should not have taken more than a total of 0.5 hours to change the caption on this templated document and the vehicle information for this particular case.

Here,

the Court agrees that this time is excessive for what was likely drafting a form Complaint for nearly identical Song-Beverly claims. A trial court's referencing counsel's use of templates, as one part of reasoning that a reduced number of attorneys was needed in a case, was affirmed. (See *Morris v. Hyundai Motor Am.* (2019) 41 Cal.App.5th 24, 31-33, 39 ["asserted that even though her counsel used 'form documents' in the case, work was necessary to conform those templates to the actual facts of this case."].) Thus, these hours are reduced by 1.2 hours (\$375.00).

3.

Tasks Related to Defendant Carson

Chevrolet—September 4, 18 & 23, 2025; October 2, 2025

Defendant

argues that it should

not be required to reimburse the 1.0 hour (\$436.00) "billed" by Counsel in connection with Plaintiff's claims against dealer Carson Chevrolet. (Nita Decl., Ex. A, pp. 3- 4.)

Here, Defendant failed to properly

itemize or otherwise identify these entries. The Court is not inclined to go searching through the records. Thus, these entries will not be stricken.

4.

Audit of Records—April 30; 2026; May 5, 2026:

Defendant argues that Counsel should not be awarded 1.2

hours (\$537.00) for "gathering and organizing receipts/invoices" and auditing their own fee records. (Nita Decl. Ex. A, p. 6.)

Plaintiff argues that these fees are

proper as they were incurred in preparing and litigating this fee motion.

The Court finds the time spent gathering and organizing receipts and invoices was billed in preparation of filing this motion and is reasonable.

5.

Motion for Attorney Fees—April 30, 2026; May 3, 5, 9 & 10, 2026; July 21, 2026; and TBD

Counsel billed (and anticipates billing) a total of 8.5 hours (\$5,122.00) to “[p]repare” and “finalize” the present motion, including anticipated time to review GM’s opposition, draft a reply, and attend the hearing. (Nita Decl. Ex. A, pp. 6-7.) Defendant argues that the time requested is facially excessive and unreasonable given the templated format of Counsel’s fee motions and minimal changes required to revise the template for use in this case. (See Kay Decl. ¶ 12, compare Ex. C.) Defendant contends that at most, Counsel’s hours for the stock fee motion (and any anticipated hours for a reply and hearing) should be capped at 3.0 hours.

Here,

Plaintiff’s billing entries for the fee motion are individually itemized and not block-billed; they include preparation of the motion and supporting declaration with exhibits, the memorandum of costs, review of Defendant’s opposition, and anticipated time for the hearing. The Court finds the time billed in connection with this motion to be reasonable.

6.

Communications with GM—Throughout

Counsel billed 1.5 hours (\$764.00) communicating with GM. (See generally Nita Decl. Ex. A.) Defendant argues that Counsel’s time for these communications reflects the practice of minimum increment billing, wherein Counsel bills at 0.1 hours repeatedly for tasks that took no more than a few seconds to complete, artificially inflating Counsel’s fee request. Defendant requests that Counsel’s time be reduced by at least half, or approximately 0.75 hours (\$382.00).

Here, communication with GM was necessary to the orderly progression of the case and these tasks are properly compensable. The Court finds these entries reasonable.

7.

Communications with Client—Throughout

After filing of the lawsuit, Counsel

billed a total of 4.0 hours (\$1,107.00)— generally billed in 0.1- and 0.2-hour increments— communicating with Plaintiff (excluding deposition preparation).

(See generally Nita Decl. Ex. A.) Defendant

argues that this amount of communication is excessive for a case that rarely required Plaintiff to do anything other than provide limited information when requested by Counsel. Defendant contends that most of these communications were entirely clerical in nature, i.e. sending and receiving documents, and that this time be reduced by at least 50%, or 2.0 hours (\$553.50).

Here, these fees were reasonably

incurred as communication with the Plaintiff is integral to any case. Further, many of these communications were completed by clerical and administrative staff at a reduced rate. The Court thus declines to deduct these entries and finds them reasonable.

8.

Clerical and Administrative Time—Throughout

Counsel billed 8.7 hours (\$1,905.00)

for work such as “[c]alendar[ed]”, “Placed Order for Process of Service”, “[f]iled”, “retrieved conformed copies”, “prepared the file”, “set up court appearance”, “[c]reated partial financial folder”, “[p]rocessed”, “uploaded”, and “printed and organized”. (Nita Decl. Ex. A.) Defendant argues that while paralegal fees may be recoverable for legal work performed, the ministerial tasks performed here, such as calendaring dates and uploading, printing and filing documents, are not properly considered as such. Defendant requests that this time is disallowed in its entirety.

In reply, Plaintiff argues that

Defendant improperly bundles “8.7 hours (\$1,905)” without specifying which individual entry it challenges. Plaintiff further contends that these are paralegal tasks that are necessary to ensure that a litigated case moves forward properly and therefore are compensable. Plaintiff asserts that these tasks require legal training, stating that “the paralegal had to prepare the file for a court hearing and in doing so had to check the file and the court docket to make sure that the necessary documents were filed and all the prerequisites for

the court hearing were done. Then, the paralegal had to ensure the court hearing was set up and send the Court Appearance Memo to the handling attorney for the court appearance. Then, the paralegal had to calendar legal dates and deadlines. These tasks require legal training, they are not merely “clerical” and therefore are compensable. These tasks are reasonable and necessary to ensure that the case moves forward efficiently and in compliance.” (Reply, p. 7.)

Here,

Defendant failed to properly identify the disputed entries. Further, these tasks were properly performed by a paralegal. The Court finds these entries reasonable.

i.

Prejudgment Interest

Plaintiff

requests prejudgment interest, stating only that “GM agreed to pay pre-judgement interest which ‘shall be calculated from the date of the filing of this action through the date which this offer is accepted.’ ” (Mot., p. 1.) However, Plaintiff does not put forth an interest calculation, or even a rate at which they contend interest should be calculated. The Court is not inclined to perform a calculation on its own without assistance from Counsel. Thus, this request will be denied unless the parties can provide an interest calculation and authority for that award at the hearing.

ii.

Costs

Plaintiff

requests costs in this motion. However, costs are not to be requested by a fee motion but rather a memorandum of costs, which Plaintiff has filed. (Cal Rules of Court, rule 3.1700(a)(1).) Should Defendant have failed to file a timely motion to tax, the Court clerk will enter the costs requested on the judgment. (Cal Rules of Court, rule 3.1700(b)(4).)

iii.

Total Reduction

Overall,

the Court makes reductions totaling 1.2 hours (\$375). Thus, Plaintiff is entitled to the reduced amount of \$13,997.00.

CONCLUSION

Plaintiff's Motion for Attorney's Fees is GRANTED in part in the reduced amount of \$13,997.00.

Plaintiff filed a memorandum of costs. Should Defendant fail to file a timely motion to tax, the Court clerk will enter the costs requested on the judgment. (Cal Rules of Court, rule 3.1700(b)(4).)